

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

-----X  
JAMES BOND

Plaintiff,

-against-

THE CITY OF NEW YORK  
DET. MICHAEL ROBBERT (Shield #6469)  
DET. JOEL POLICHRON (Shield #24564) and  
DET. DAVID COWAN (Shield #1558)

Defendants.  
-----X

11 Civ. 4675 (FB)(RLM)

**AMENDED COMPLAINT**

**JURY DEMAND**

Plaintiff, by his attorney, Philip Akakwam, Esq., complaining of the defendants, The City of New York, Det. Michael Robbert (Shield #6469), Det. Joel Polichron (Shield #24564) and Det. David Cowan (Shield #1558), upon information and belief alleges as follows:

**INTRODUCTION**

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985].

2. Plaintiff seeks monetary damages for: the false arrest, false imprisonment and detention of Plaintiff, James Bond, and for assault, and otherwise, for the violation of Plaintiff's federally guaranteed constitutional and civil rights. Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interest of justice and assure that his remedy is full and complete.

### **JURISDICTION**

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. Jurisdiction is also invoked pursuant to and under 28 U.S.C. Section 1367, entitled Supplemental Pendent Party Jurisdiction.

5. Plaintiff requests that the Court invoke pendent jurisdiction over any and all claims arising under the laws and Constitution of the State of New York.

6. The State law claims have a common nucleus of operative facts with the federally based claims and they arise out of the same transaction(s) and occurrence(s) giving rise to the Plaintiff's federally based claims and causes of action.

7. Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which Plaintiff, while seeking monetary damages, also seeks declaratory and injunctive relief if such is deemed necessary and desirable and in the interest of justice in order to provide Plaintiff with a full and complete remedy for the violation of her rights.

### **PARTIES**

8. Plaintiff, a 64 years old black male, is a resident of the City of New York, County of Kings and State of New York.

9. The City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers

complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

10. At all times herein, individual defendants Det. Michael Robbert (Shield #6469), Det. Joel Polichron (Shield #24564) and Det. David Cowan (Shield #1558) were employed as police officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and the State of New York. The defendant Police Officers were the servants, agents, and employees of their co-defendant, the City of New York. Notwithstanding the wrongful and illegal nature of their acts and conduct as hereinafter described, they were taken in and during the course of their duties and functions as New York City Police Officers and incidental to the otherwise lawful performance of the same.

11. All conditions precedent to filing of this action have been complied with; on August 16, 2011, within ninety days after the claim alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the Supreme Court. The said Notice of Claim was assigned claim number 2011PI029239.

12. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

13. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

**FACTS COMMON TO ALL CAUSES OF ACTION**

14. On or about July 13, 2011, at approximately 5:30 p.m., defendant Police Officers were on duty and were acting within the scope of their authority as police officers for defendant City of New York and in furtherance of the business of the City of New York.

15. On the date and time aforesaid, plaintiff had just left a C-Town supermarket on Broadway and Pilling Street to walk home to his residence located at 1782 Broadway, Brooklyn, Kings County, New York. As plaintiff got to the intersection of Broadway and Pilling, some plain clothes police officers came out of a unmarked vehicles and pounced on plaintiff and shouted at him that he was under arrest.

16. Plaintiff asked the officers the reason for his arrest, but they ignored his questions and proceeded to search him there on the streets and took his house keys from his pocket.

17. Plaintiff was put in handcuffs and placed in an unmarked van.

18. While plaintiff was sitting in the van, some of the officers went to his residence across the street at 1782 Broadway, Brooklyn, and using the house keys they had taken from plaintiff's pocket, they opened and entered into his apartment, without any warrant and without his consent.

19. For about four hours following his arrest, plaintiff was driven around the streets of Brooklyn in the unmarked van as the officers were picking other arrestees from various locations.

20. Thereafter, plaintiff was brought to the 73<sup>rd</sup> police precinct where he was searched, fingerprinted, photographed and then thrown into a cell room with many other arrestees.

21. At the precinct plaintiff again asked the reason for his arrest but none of the officers would advise plaintiff of the reason for his arrest.

22. Plaintiff remained in the cell at the precinct for many hours before he was taken to the

Central Booking where he was again searched, processed and thrown into a holding cell.

23. Plaintiff was held in the cell at Central Booking until about 3:00 AM on July 15, 2011 when he was released without any charges.

24. The foregoing is part of a pattern of harassment, intimidation, humiliation, false arrests and imprisonment and abuse of the criminal process to which plaintiff has been subjected by officers of the 73<sup>rd</sup> police precinct.

25. In or about November 2010, plaintiff was arrested in front of his house by some police officers in plain clothes who seized plaintiff as he was coming out of his residence.

26. Plaintiff had just come out of his building with a boiler repair man when about six officers came upon him, seized him and took him in handcuffs to his apartment on the second floor.

27. The officers entered plaintiff's apartment without his consent and without showing him any warrant.

28. And the officers searched plaintiff's apartment and seized some viagra pills therefrom.

29. Thereafter, plaintiff was transported to the 73<sup>rd</sup> police precinct where he was fingerprinted, photographed and thrown into a police cell.

30. Plaintiff remained in said cell until about 2:00 AM the following morning when he was given a Desk Appearance Ticket (DAT) and then released.

31. Plaintiff appeared in court on December 15, 2010 and was told to go home and no further appearance was scheduled.

32. Again, in or about December 2010, plaintiff was arrested by officers in plain clothes as he was coming out of his residence on 1782 Broadway, Brooklyn.

33. On said date, plaintiff was exiting the door of his building when he was pushed back into the building by some police officers who told him that they had come to get more viagra and cigarettes.

34. The officers took plaintiff upstairs in handcuffs and into his apartment. They entered and searched his apartment without a warrant and without his consent and they took some cigarettes from the apartment.

35. Then, plaintiff was led away from his apartment and downstairs to an unmarked police van while officers continued to search his apartment without him being present.

36. Plaintiff was later transported to the precinct where he was fingerprinted, photographed and thrown into a cell.

37. Plaintiff remained in the cell until about 1:30 AM the following morning when he was given a DAT and then released.

38. Plaintiff appeared in court on January 26, 2011 on a charge of criminal possession of controlled substance even though no such substance was found on him. He was told to go home and no further appearance was scheduled.

39. Plaintiff is constantly subjected to harassment, intimidation, illegal searches and threats by police officers of the City of New York. He has been stopped, searched, parted down and/or frisked on the public streets on many occasions by plain-clothed officers without any justifiable reason. And on other occasions, he had been arrested at his house, taken to the precinct, detained for hours and released without charges.

40. At the time of the above arrests, detention and illegal searches, plaintiff was lawfully at the locations of the incidents and did not engage in any conduct which would justify a police

intrusion on his constitutional rights.

41. Before and at the time plaintiff was unlawfully arrested, seized, and searched by the police, he was not engaging in any suspicious or unlawful conduct. Therefore, his various arrests without a warrant were completely unjustified, in that they were made without reasonable suspicion or probable cause.

42. Plaintiff suffered physical injuries, including injury to his wrists and shoulder. And plaintiff suffered emotional distress, mental anguish and psychological trauma as a consequence of the assault and battery, and as a result of his frequent unlawful and unjustified arrests and imprisonment by defendant officers.

43. The Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

44. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for the violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.

45. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct

46. The actions taken against plaintiff by the defendant Officers herein were also

propelled by a policy and practice of the City of New York which promotes an “ends justifies the means” philosophy of combating crime which causes officers to arrest individuals, particularly blacks, without probable cause and to subject such individuals to false criminal charges, to excessive force, assault and battery. The said policy and practice falls disproportionately on persons of color.

47. The actions of the defendants, acting under color of State law, deprived plaintiff of his rights, privileges and immunities under the laws and constitution of the United States; in particular, the right to be secure in his person and property, the right to due process, and the right to be free from false arrest, false imprisonment, malicious prosecution, and abuse of process.

48. The policies and practices complained of herein also violate the rights of Plaintiff under the Constitution and laws of the City and State of New York.

49. The actions and conduct of the Officers and the policies and practices of the City of New York were negligent and the proximate cause of damages to the Plaintiff.

50. The Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

51. The Plaintiff has no other adequate remedy at law but for this action.

**AND AS FOR A FIRST CAUSE OF ACTION**

52. Plaintiff reiterates paragraphs 1 through 51 and incorporates such by reference herein.

53. Defendant Det. Michael Robbert (Shield #6469), Det. Joel Polichron (Shield #24564) and Det. David Cowan (Shield #1558) violated Plaintiff’s right to be free from false arrest and false imprisonment guaranteed to him under the Fourth and Fourteenth Amendments to the

United States Constitution, and Plaintiff's right not to be denied his liberty without due process of law, secured to him under the Fifth and Fourteenth Amendments to the Constitution. By violating plaintiff's constitutional rights under color of State Law, the Defendant Police Officers violated the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

54. As a result of plaintiff's false arrest and imprisonment, plaintiff has been caused to suffer humiliation, bodily pain, mental anguish, embarrassment, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, medical expenses and has been otherwise damaged.

**AND AS FOR A SECOND CAUSE OF ACTION**

55. Plaintiff reiterates paragraphs 1 through 54 and incorporates such by reference herein.

56. The Plaintiff was subjected to malicious prosecution in that he was arrested and charged, without probable cause, and subjected to criminal prosecution as a consequence thereof in violation of his rights under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

57. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

**AND AS FOR A THIRD CAUSE OF ACTION**

58. Plaintiff reiterates paragraphs 1 through 57 and incorporates such by reference herein.

59. Defendant Police Officers falsely arrested and imprisoned plaintiff in violation of the Common Law.

60. The false arrest and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

61. Defendant Police Officers acted with malice and reckless and intentional disregard for Plaintiff's rights under common law when they arrested and imprisoned Plaintiff because they were acting on allegations they knew to be false. Therefore, said Defendant Police Officers are guilty of egregious and gross misconduct toward plaintiff.

62. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

**AND AS FOR A FOURTH CAUSE OF ACTION**

63. Plaintiff reiterates paragraphs 1 through 62 and incorporates such by reference herein.

64. By arresting, detaining and imprisoning plaintiff, without justification, probable cause or reasonable suspicion, and assaulting him, the Defendant Officers, deprived plaintiff of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York State Constitution.

65. In addition, the defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

66. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

67. Defendants, their officers, attorneys, agents, servants and employees were responsible

for deprivation of Plaintiff's State Constitutional rights. Defendant City, as employer of each of the defendant officers, is responsible for their wrongdoing under the common law doctrine of *respondeat superior*.

68. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

**AND AS FOR A FIFTH CAUSE OF ACTION**

**(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)**

69. Plaintiff reiterates paragraphs 1 through 68 and incorporates such by reference herein.

70. The foregoing violations of plaintiff's federal constitutional rights and resultant injuries were directly, foreseeably and proximately caused by conduct, chargeable to defendant City of New York, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

71. Defendant City of New York failed to provide proper training and/or failed to insure that the training provided was adequately understood in regard to the following tasks which police officers commonly perform:

- (a) The determination of probable cause to make an arrest;
- (b) The duty to take into account the totality of the circumstances in determining the existence of probable cause to make an arrest;
- (c) The circumstances under which investigative detentions may lawfully occur and the manner in which they may lawfully be executed;
- (d) The scope of authority to search provided by a search warrant;
- (e) The very limited circumstances under which a home may be entered without a

warrant;

- (f) The very limited circumstances under which a warrantless search may be carried out.

72. Defendant City of New York maintained unwritten customs and practices which permitted or condoned the unlawful searches of persons, the unlawful searches of homes, the unlawful seizure of persons, subjecting citizens to disparately harsh law enforcement practices on account of their race. These customs and practices are demonstrated by the failure of said defendant to properly investigate numerous complaints from citizens alleging such police misconduct and by their failure to take adequate remedial action where misconduct has occurred.

73. These customs and practices are further demonstrated by said defendant's practice of promoting officers who were the subject of judicial finding of unconstitutional conduct, who were the subject of an inordinate number of citizen complaints and lawsuits alleging misconduct, and/or whose conduct evidenced racial discrimination against African-American residents of the city.

74. Defendant City of New York acted intentionally, wilfully and/or with deliberate indifference to the rights of plaintiff. The acts and omissions of said defendant described above were a direct cause of the injuries suffered by plaintiff.

75. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City of New York, including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

76. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong choice.

77. The aforementioned policymaking officials knew that the wrong choice by police officers concerning determination of probable cause will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

78. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraphs based upon, among other circumstances, numerous civil lawsuits, some of which resulted in substantial civil settlements, credibly alleging that police officers had conducted searches or arrests without probable cause.

79. Said notice is also based upon the inherent obviousness of the need to train, supervise and discipline police officers in their aforementioned constitutional obligations to counteract the pressures on officers and the powerful incentives they have to close cases and to obtain arrests and convictions.

80. During all times material to this Complaint, the Defendant City and its policy making officials owed a duty to the plaintiff and the public at large, which they knowingly and intentionally breached, or to which they were deliberately indifferent, to implement policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct of their employees violating the aforementioned constitutional rights of innocent members of the

public including plaintiff.

81. As part of its policies, customs and practices, Defendant City has failed to take proper corrective and punitive actions against overreaching police officers thus creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

82. As a result of inadequate training of police officers on the practical meaning of probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

83. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant City and its police department, the NYPD, were collectively and individually a substantial factor in bringing about the aforesaid violations by the individual police defendants of Plaintiff's rights under the Constitution and laws of the United States.

84. By virtue of the foregoing, Defendant City of New York is liable for having substantially caused the foregoing violations of Plaintiff's constitutional rights and his constitutional injuries.

**AND AS FOR A SIXTH CAUSE OF ACTION**

**(Negligent Hiring, Training and Supervision Under State Law; Defendant City)**

85. Plaintiff reiterates paragraphs 1 through 84 and incorporates such by reference herein.

86. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants and/or employees employed by the NYPD with regard to their aforementioned duties.

87. As a direct and proximate result of the acts and omissions of the defendants described

in this Complaint, plaintiff suffered a significant loss of his liberty and violation of his federal constitutional rights, was prevented from attending to his necessary affairs and suffered and continues to suffer significant emotional pain, distress, humiliation and embarrassment.

**WHEREFORE**, Plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and
- v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York  
March 2, 2012

LAW OFFICE OF PHILIP AKAKWAM

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